SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 10
Honorable Frederick S. Chung
Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: July 29, 2025 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.
Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

The courthouse is open: Department 10 is now fully open for in-person hearings, as of April 18, 2023. The court strongly prefers **in-person** appearances for all contested law-and-motion matters. For all other hearings (*e.g.*, case management conferences), the court strongly prefers either in-person or video appearances. Please note that as of January 1, 2025, telephone-only appearances are no longer permitted for any civil hearings, under Civil Local Rule 5.A, unless the court grants an exception. As a general matter, telephone-only appearances cause significant disruptions and delays to the proceedings. Please avoid appearing solely by audio unless absolutely necessary.

Scheduling motion hearings: Please go to https://reservations.scscourt.org or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

CourtCall is no longer available: Department 10 uses Microsoft Teams for remote hearings. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 10: https://santaclara.courts.ca.gov/online-services/remote-hearings. Again, the court strongly prefers in-person or video appearances. Telephonic appearances are a sub-optimal relic of a bygone era.

Recording is prohibited: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If any party wishes to have a court reporter, the appropriate form must be submitted. See https://santaclara.courts.ca.gov/general-information/court-reporter-information.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV430032	Melody Pomele v. Evergreen School District	Click on LINE 1 or scroll down for ruling.
LINE 2	20CV367997	Francisco Carrascal et al. v. CSAA Insurance Exchange et al.	Click on LINE 2 or scroll down for ruling in lines 2-3.
LINE 3	20CV367997	Francisco Carrascal et al. v. CSAA Insurance Exchange et al.	Click on LINE 2 or scroll down for ruling in lines 2-3.
LINE 4	24CV445892	Wells Fargo Bank, N.A. vs Alexandra J. Lewis	Click on LINE 4 or scroll down for ruling.
LINE 5	21CV381717	Jonathan Maldonado v. Aniceto Alva	Click on LINE 5 or scroll down for ruling.
LINE 6	22CV403678	Shubha Landscape Design, Inc. v. Rochelle Rider	Motion to be relieved as counsel and trial setting conference: parties to appear.
LINE 7	24CV440543	Ferras Hamad v. Meta Platforms, Inc.	Application of Sean F. Healey to appear *pro hac vice*: parties to appear. If no party or third-party (*e.g.*, the State Bar of California) appears at the hearing to object to the application, the court will GRANT it.
LINE 8	24CV440543	Ferras Hamad v. Meta Platforms, Inc.	Application of Karina Sanchez-Peralta to appear *pro hac vice*: parties to appear. If no party or third-party (*e.g.*, the State Bar of California) appears at the hearing to object to the application, the court will GRANT it.
LINE 9	24CV441725	Amit Rattu et al. v. Melissa Baxter	Click on LINE 9 or scroll down for ruling.
LINE 10	24CV453124	Olga Sanchez Mojarro v. Oscar Ernesto Reyes Varela et al.	Click on LINE 10 or scroll down for ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 11	25CV457709	Shirley J. Canel Soc et al. v. Road Safety, Inc. et al.	Petition for approval of compromise of minor's claim. Parties to appear, in accordance with CRC 7.952.
LINE 12	25CV457709	Shirley J. Canel Soc et al. v. Road Safety, Inc. et al.	Petition for approval of compromise of minor's claim. Parties to appear, in accordance with CRC 7.952.
LINE 13	25CV457709	Shirley J. Canel Soc et al. v. Road Safety, Inc. et al.	Petition for approval of compromise of minor's claim. Parties to appear, in accordance with CRC 7.952.
LINE 14	23CV413057	Rosaura de Navarro v. American Honda Motor Company, Inc.	Motion to compel further deposition testimony: parties to appear, per the court's July 23, 2025 order.

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Calendar Line 1
Case Name: *Melody Pomele v. Evergreen School District*
Case No.: 24CV430032

On December 12, 2024, the court sustained defendant Evergreen School District's (the "District's") demurrer to the complaint on the ground that the first through sixth causes of action were barred by the statute of limitations. The court granted leave to amend, and plaintiff Melody Pomele filed a first amended complaint ("FAC") on January 2, 2025. The District has now demurred to the FAC on the same grounds, arguing that Pomele failed to cure the pleading defect. Pomele's opposition to the second demurrer was due on July 16, 2025, but the court has not received any opposition in the file. Based on the papers received, the court agrees with the District that Pomele's amendments to the FAC do not successfully plead around the statute of limitations.

The demurrer is SUSTAINED without leave to amend.

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Calendar Lines 2-3
Case Name: *Francisco Carrascal et al. v. CSAA Insurance Exchange et al.*
Case No.: 20CV367997

I. BACKGROUND

Self-represented plaintiffs Francisco Carrascal and Thaweesap Uttho ("Plaintiffs") filed this action against Guillermo Chavarria and Chavarria's insurance company, Allstate Northbrook Company ("Allstate"), following a collision between their car and Chavarria's car in 2019. Plaintiffs filed their initial complaint on July 9, 2020, a first amended complaint on September 14, 2020, and a second amended complaint on April 7, 2021. Plaintiffs and Chavarria filed a notice of unconditional settlement between them on March 17, 2023. More than a year after this settlement, Plaintiffs filed a third amended complaint ("TAC") on July 29, 2024 naming their own insurance company, CSAA Insurance Exchange ("CSAA"), as a new defendant.[1]

The TAC stated three causes of action: (1) negligence; (2) negligent infliction of emotional distress ("NIED"); and (3) breach of contract. CSAA, the only remaining defendant, brought a demurrer to the TAC, which the court sustained on December 12, 2024. The court determined that all three causes of action failed to state sufficient facts under Code of Civil Procedure section 430.10, subdivision (e).[2] While the court expressed doubts that any of the causes of action could be successfully amended, it granted Plaintiffs 20 days' leave to amend. The order stated that it was only granting leave to amend the causes of action as to which the demurrer had been sustained; it did not grant leave to add new causes of action. (See December 12, 2024 Order, p. 12:1-8.)

Plaintiffs did not file any amended pleading within 20 days of the December 12, 2024 order. Instead, Plaintiffs filed a document entitled "Amendment to Pleading to Object to Demurrer" on December 23, 2024, with a noticed hearing date of May 15, 2025. This was followed by a document entitled "Strong Lawful[] Opposition to Demurrer [and] Amendment to Pleading Objecting [to] 'Demurrer Grant' Based in Fraud" on December 27, 2024. This latter document did not bear a hearing date. On January 23, 2025, CSAA filed an ex parte application to dismiss the action with prejudice, based on Plaintiffs' failure to file an amended pleading in accordance with the December 12, 2024 order. Because of the documents filed by Plaintiffs, the court set CSAA's application for a hearing on May 15, 2025, the same date noticed by Plaintiffs' "Amendment to Pleading to Object to Demurrer."

On April 17, 2025, Chavarria filed a motion for summary judgment, objecting to his continued inclusion in the TAC as a defendant, even after his unconditional settlement with Plaintiffs. That motion was set for hearing on July 29, 2025. The court has not received any timely opposition to this motion. (See Code Civ. Proc., § 437c, subd. (b)(2).)

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[1] Previous versions of the complaint erroneously referred to "AAA Insurance" as a named defendant, a party that was never served. On August 1, 2024, CSAA was finally deemed served with the summons and complaint—via a notice of acknowledgement and receipt—more than four years into this case.
[2] The court takes judicial notice of the December 12, 2024 order on its own motion pursuant to Evidence Code section 452, subdivision (d).

At the May 15, 2025 hearing, the court determined that the documents filed by Plaintiffs in December 2024 did not constitute an amended pleading and that the first (December 23, 2024) document could only be reasonably construed as an inadequately supported motion for leave to amend—to add an additional cause of action for negligent misrepresentation against CSAA, as well as an additional cause of action for "fraud and negligent misrepresentation" against former defendant Allstate, who had been dismissed from the case on May 6, 2021. (See May 15, 2025 Order, p. 2:16-23.)[3] The court also interpreted the document filed on December 27, 2024 as an exceedingly belated objection to the court's December 11, 2024 tentative ruling. (*Id*. at p. 4:10-23.) The court denied the motion for leave to amend. (*Id*. at p. 5:1-9.)

The court also denied CSAA's request for dismissal, as it construed Plaintiffs' filings (giving Plaintiffs the benefit of the doubt) as an unsuccessful attempt to comply with the court's December 12, 2024 order. The court concluded by stating:

> In view of the foregoing, the court will grant Plaintiffs one last opportunity to avoid a dismissal as to CSAA by filing a fourth amended complaint that *strictly* complies with the court's December 12, 2024 order . . . . That means Plaintiffs may amend their pleading in an effort to remedy the defects in the *negligence*, *negligent infliction of emotional distress*, and *breach of contract* causes of action against CSAA, but they may not add new causes of action or new parties to the case. They must do so within 10 days of this order—*i.e.*, by no later than **May 27, 2025** (given the weekend and Memorial Day holiday). If they fail to do so, CSAA may refile its ex parte application under section 581.

(May 15, 2025 Order, pp. 5:21-6:5 [emphasis in original].)

Plaintiffs appear to have attempted to comply with the May 15, 2025 order by submitting a fourth amended complaint ("4AC") (though signed only by plaintiff Carrascal) on May 23, 2025. The clerk's office rejected this filing, based apparently on a misreading the court's order (and perhaps compounded by the confusing procedural history of this case). Because the court's May 15, 2025 order granted Plaintiffs a "last opportunity" to file an amended pleading that "strictly complies" with the December 12, 2024 order, the court now orders the clerk's office to accept the 4AC for filing, and this pleading must be deemed filed as of May 23, 2025. The 4AC states the same three causes of action as the TAC: (1) negligence; (2) negligent infliction of emotional distress; and (3) breach of contract.

On May 30, 2025, CSAA filed a demurrer to the 4AC. This demurrer was set for hearing on July 29, 2025, the same date as Chavarria's motion for summary judgment. Plaintiffs have not filed any opposition to this demurrer, either.

II. DISCUSSION

As noted above, Plaintiffs are self-represented. Self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v.*

[3] The court also takes judicial notice of the May 15, 2025 order on its own motion under Evidence Code section 452, subdivision (d).

Smith (2005) 132 Cal.App.4th 1434, 1444.) Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.”].)

A. Chavarria's Motion for Summary Judgment

Because the court has ordered the 4AC accepted for filing, the motion for summary judgment must be denied, as it is directed to the former pleading. An amended complaint supersedes all prior complaints, and because there is but one complaint in a civil action, “the filing of an amended complaint moots a motion directed to a prior complaint.” (*State Comp. Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130-1131 [error to grant summary adjudication based on previous complaint].)

The court DENIES Chavarria’s motion for summary judgment as moot. This ruling is without prejudice to Chavarria’s ability to file a similar motion directed at the 4AC.

B. CSAA’s Demurrer

CSAA demurs to all three causes of action in the 4AC on grounds of uncertainty and failure to state sufficient facts. (See Notice of Demurrer and Demurrer, p. 2:1-21.)

1. Uncertainty

As with the TAC, CSAA demurs again to all three causes of action in the 4AC on the ground of uncertainty, even though the court previously overruled this basis for demurrer in the December 12, 2024 order. This is improper, and it is again unsupported by any argument in CSAA’s memorandum of points and authorities. As the court previously pointed out, “‘demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that defendant cannot reasonably respond.’ ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc*. (2019) 38 Cal.App.5th 677, 695 [internal citations omitted].)

The court again OVERRULES CSAA’s demurrer to all three causes of action on the ground of uncertainty. (Code Civ. Proc., § 430.10, subd. (f).)

2. First Cause of Action: Negligence

“The elements of a negligence cause of action are duty, breach, causation and damages. [Citation.]” (*County of Santa Clara v. Atlantic Richfield Co*. (2006) 137 Cal.App.4th 292, 318.) “The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. [Citation.]” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.)

The court SUSTAINS CSAA’s demurrer to the first cause of action based on a failure to state sufficient facts.

This cause of action is still based primarily on Chavarria's alleged negligence in colliding with Plaintiffs. CSAA, by contrast, is Plaintiffs' *own* insurer. As the court noted in the December 12, 2024 order, this is a role that almost never gives rise to a negligence cause of action. (See *Adelman v. Associated International Ins. Co.* (2001) 90 Cal.App.4th 352, 369 ["If an insured seeks to recover in tort for an insurer's mishandling of a claim, it must allege more than mere negligence."]; *Sanchez v. Lindsey Morden Claims Services, Inc*. (1999) 72 Cal.App.4th 249, 254 ["negligence is not among the theories of recovery generally available against insurers . . ."].)

CSAA persuasively argues that the 4AC does not cure the defects in this cause of action that were identified in the December 12, 2024 order. The allegations that CSAA breached a duty to "protect their client Plaintiffs" or to "investigate the accident property" and that it "blamed their own clients" are insufficient to support a negligence cause of action against CSAA. (See 4AC, pp. 3:25-4:13.)[4] As the court previously noted, a negligence cause of action cannot be based on CSAA's alleged failure to perform on a *contract* between the parties. The allegation that CSAA somehow "allowed" Chavarria and Allstate to be dismissed from this case also does not support a negligence cause of action. (See *id.* at p. 4:24-27.) Plaintiffs have represented themselves since the beginning of this lawsuit, and the progress of the lawsuit has been their responsibility. Events that occurred during this litigation cannot reasonably be framed as breaches of a duty of care owed to Plaintiffs by their insurer.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (See *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 (*Schifando*); *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 (*Shaeffer*) ["The onus is on the plaintiff to articulate the 'specifi[c] ways' to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend 'only if a potentially effective amendment [is] both apparent and consistent with the plaintiff's theory of the case. [Citation.]'"].) Plaintiffs have not met that burden here, as they have not even filed an opposition to the demurrer. Moreover, they have been given multiple opportunities to cure their pleading defects in this case. As no potentially effective amendment is apparent to the court, the court denies any further leave to amend the first cause of action as to CSAA.

3. Second Cause of Action: NIED

As quoted by the court in its previous demurrer order, "[t]he law of negligent infliction of emotional distress in California is typically analyzed by reference to two 'theories' of recovery: the 'bystander' theory and the 'direct victim' theory. We have repeatedly recognized that the negligent causing of emotional distress is not an independent tort, but a tort of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability." (*Fluharty v. Fluharty* (1997) 59 Cal.App.4th 484, 490, internal citations and quotation marks omitted.)

The second cause of action can only be considered a "direct victim" assertion of NIED. A "direct victim" theory is one in which the plaintiff's claim of emotional distress is based on

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[4] The 4AC's page numbers are often obscured by handwritten allegations, and its paragraphs are not consecutively numbered, making precise citation difficult.

the violation of a duty that the defendant owes directly to the plaintiff. (*Ragland v. U.S. Bank National Assn*. (2012) 209 Cal.App.4th 182, 205.) The California Supreme Court has allowed plaintiffs to recover damages as "direct victims" in only three types of factual situations: (1) the negligent mishandling of corpses (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 879); (2) the negligent misdiagnosis of a disease that could potentially harm another (*Molien v. Kaiser Foundation Hospitals* (1980) 27 Cal.3d 916, 923); and (3) the negligent breach of a duty arising out of a preexisting relationship (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1076). Only the third situation could potentially apply here.

The court SUSTAINS CSAA's demurrer to the second cause of action on the ground that it fails to state sufficient facts.

As with the first cause of action, this cause of action is also based primarily on the collision allegedly caused by Chavarria. The allegation that CSAA is liable for NIED because "they have not done their job as an insurance carrier for Plaintiffs" and "did nothing to protect their clients/Plaintiffs" does not state sufficient facts to support a direct victim theory of NIED. (See 4AC, p. 6:15-24.) Also, because the first cause of action fails to state sufficient facts, Plaintiffs have not adequately alleged the breach of any duty arising out of a preexisting relationship. This is because "'there is no duty to avoid negligently causing emotional distress to another . . . .' Thus, 'unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty.'" (*Gu v. BMW of North America, LLC* (2005) 132 Cal.App.4th 195, 204 [internal citations omitted].)

As the demurrer is unopposed and no effective amendment is apparent to the court, the court denies further leave to amend the second cause of action as alleged against CSAA. (See *Schifando* and *Shaeffer*, *supra*; see also *Medina v. Safe-Guard Products* (2008) 164 Cal.App.4th 105, 112 fn. 8 ["As the Rutter practice guide states: 'It is not up to the judge to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.'"].)

4. Third Cause of Action: Breach of Contract

As noted in the prior demurrer order, in order to state cause of action for breach of contract, a plaintiff must allege: "(1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. [Citation.]" (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

The court SUSTAINS CSAA's demurrer to the third cause of action on the ground that it fails to state sufficient facts.

CSAA is correct that the 4AC does not cure the defects identified in the December 12, 2024 order in the third cause of action. The allegations that CSAA "did nothing to uphold their end of the contract to protect their clients/Plaintiffs," and "fraudulently accused" Francisco

Carrascal of being at fault in the accident are insufficient to allege a breach of contract. (See 4AC, pp. 7:26-8:2.)[5] The third cause of action in the 4AC continues to fail to identify the terms of any contract between CSAA and Plaintiffs, including specifically the terms that were allegedly breached. It also fails to allege facts establishing that a valid contract between the Plaintiffs and CSAA existed at the time of the accident or that Plaintiffs performed their obligations under the contract (or had an excuse for non-performance).

As the demurrer is unopposed and no effective amendment is apparent to the court, further leave to amend the third cause of action as alleged against CSAA is DENIED. (See *Schifando* and *Shaeffer*, *supra*.)

III. CONCLUSION

Plaintiffs' 4AC is accepted for filing and deemed filed as of May 23, 2025.

Chavarria's motion for summary judgment based on the TAC is DENIED as moot.

CSAA's demurrer to the 4AC's first, second, and third causes of action on the ground that they each fail to state sufficient facts against CSAA is SUSTAINED without further leave to amend.

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[5] The court's May 15, 2025 order denied Plaintiffs' request to add a cause of action for negligent misrepresentation against CSAA.

Calendar Line 4
Case Name: *Wells Fargo Bank, N.A. vs Alexandra J. Lewis*
Case No.: 24CV445892

I. BACKGROUND

This is a limited civil action brought by plaintiff Wells Fargo Bank, N.A. ("Wells Fargo") against defendant Alexandra Lewis. Wells Fargo seeks to recover unpaid credit card debt from Lewis.

The original and still-operative complaint is a form complaint filed by Wells Fargo on August 23, 2024. It states two causes of action: (1) Breach of Written Contract; and (2) Breach of Implied-In-Fact Contract. Attached to the complaint as Exhibit A is a copy of the Visa credit card agreement upon which the first cause of action is based. (See Complaint, ¶ BC-1.) While the credit card agreement is not signed by either party, paragraph 1 of Part 1 states, in part: "This contract is for your Credit Card account (Account) and is between Wells Fargo Bank, N.A. and each account holder . . . . By using or confirming your Account, you and any joint Account holder accept this agreement's terms." Paragraph 2 of Part 1 states, in part: "When you use your Account or let someone else use it, you promise to pay the total amount of the Purchases, Cash Advances, and Balance Transfers. You also promise to pay all interest, fees, and other amounts that you may owe us."

Lewis answered the complaint on December 5, 2024. Wells Fargo has now filed a motion for summary judgment, which Lewis opposes.

II. MOTION FOR SUMMARY JUDGMENT

A. General Standards

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins*. (2010) 181 Cal.App.4th 60, 73 (*Nieto*) ["[T]he pleadings determine the scope of relevant issues on a summary judgment motion."].)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an "issue of duty." (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass'n* (2010) 189 Cal.App.4th 947, 975 ["If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered."]; *Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

The moving party's declarations and evidence will be strictly construed in determining whether they negate or disprove an essential element of a plaintiff's claim—the court will "resolve any evidentiary doubts or ambiguities in plaintiff's [or opposing party's] favor." (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) While the same standards of admissibility govern both, the opposition declarations are liberally construed while the moving party's evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th

763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.)

Where a plaintiff has moved for summary judgment, it has the burden of showing that there is no defense to a cause of action. (Code Civ. Proc. § 437c, subd. (a).) That burden can be met if the plaintiff has proved each element of the cause of action entitling it to judgment on that cause of action. If the plaintiff meets this burden, it is up to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (See Code Civ. Proc., § 437c, subd. (p)(1); *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 965.)

B. The Basis for Wells Fargo's Motion

Wells Fargo moves for summary judgment on the ground that "there is not triable issue of material fact, or issue of liability, and therefore the moving party is entitled to summary judgment." In addition to the notice of motion and supporting memorandum, the motion is supported by a separate statement of undisputed facts, the declaration of Wells Fargo's PMQ witness (Charles Brophy), and a declaration of counsel. (February 19, 2025 Notice of Motion, p. 2:1-4.)

The motion mistakenly asserts that the complaint states six causes of action: causes of action for breach of written contract and breach of implied-in-fact contract plus four more. (See Notice of Motion, p. 1:26-28.)[6] There are only two causes of action in the complaint, and so the court disregards the extraneous arguments in the motion related to causes of action (*e.g.,* "Open Book Account") that were not pled. The accompanying separate statement also does not comply with rule 3.1350(d)(1) (and (h)) of the California Rules of Court. Rather than list undisputed material facts ("UMFs") in support of summary judgment as a whole, it lists UMFs in support of five "issues," none of which are listed in the notice of motion. The court exercises its discretion to consider the motion despite this failure, as the first 14 UMFs (for "issue one") are sufficient to support summary judgment as to the two causes of action asserted in the complaint. The court's authority to deny summary judgment for failure to comply with rule 3.1350 is discretionary, not mandatory. (See *Holt v. Brock* (2022) 85 Cal.App.5th 611, 619, citing *Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Wells Fargo argues that Lewis "was issued a Wells Fargo Credit Card on July 6, 2020. Defendant used the credit card for a period of several years and failed to remit any further payments on [her] Wells Fargo Credit Card ending in 7418 since July 4, 2023, leaving an outstanding balance of $7,989.57. There are absolutely no facts in dispute and judgment for Plaintiff is appropriate." (Memorandum, p. 3:4-8.) Wells Fargo goes on to argue that the evidence it submits in support of the motion establishes the elements of breach of written contract and breach of implied contract. (See *id.* at pp. 5:23-7:7.)

As noted above, the motion is supported by two declarations. The first is a declaration from Charles Brophy, a Loan Workout Specialist at Wells Fargo. He states that as a part of his duties, he is responsible for monitoring credit card accounts, investigating and resolving

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[6] Oddly, the opposition makes the same mistake.

customer disputes, and reviewing Wells Fargo business records for purposes of litigation. He further states that as part of his duties, he has reviewed Lewis's records with Wells Fargo. These records show:

> 9. Defendant applied for, and was issued, a Wells Fargo credit card account.
>
> 10. Thereafter, Plaintiff sent Defendant a Wells Fargo Credit Card through the mail.
>
> 11. The most recent Customer Agreement associated with the Credit Card was made available to Defendant for review and objection . . . .
>
> 12. Pursuant to Paragraph 1 of the Customer Agreement, Defendant accepted the terms of the Customer [A]greement by using the credit card.
>
> 13. Defendant's account was opened with Plaintiff on or about July 6, 2020.
>
> 14. Pursuant to the terms of the Customer Agreement, in exchange for making charges on the credit card, Defendant agreed to repay the principal amount plus any applicable interest and finance charges thereon.
>
> 15. Defendant charged goods and services to the account, or authorized others to charge goods and services to the account, with Plaintiff and thereby incurred a balance for said charges along with interest which was stated on the monthly billing statements . . . .
>
> 16. Every month Wells Fargo Bank, N.A.'s computer system generates a monthly statement that is sent to the customer. As transaction are reported such as charges, overdraft transfers, cash advances and payments, they are recorded in Wells Fargo Bank, N.A.'s computer system which stores them, compiles the data, and keeps track of the balance on a daily basis. This data is then used to generate the monthly statement that is sent to the customer . . . .

(Brophy Decl., ¶¶ 9-16.)

Brophy also declares that there "is no record of any unresolved disputes on this credit card account or any active lawsuits against Wells Fargo Bank, N.A. for any unresolved disputes on this credit card account of which Plaintiff is aware. [¶] The Defendant made payments of the principal and interest on the subject account up and through July 4, 2023. [¶] No further payments were made on this account after July 4, 2023, and a balance of $7,989.57 remains due and owing from Defendant to Plaintiff on the subject account." (Brophy Decl., ¶¶ 20-22.)

There are two exhibits to the Brophy declaration. Exhibit 1 is a copy of Wells Fargo's most recent Customer Agreement. Exhibit 2 consists of copies of all available statements of account for Lewis's credit card. (See Brophy Decl., ¶¶ 11 and 15.)

The second declaration in support of the motion is from counsel Ashley Mulhorn, who authenticates two attached exhibits (again numbered 1 and 2). Exhibit 1 is a copy of requests for admissions that Wells Fargo propounded on Lewis, and Exhibit 2 is a copy of Lewis's responses. Lewis admitted Request No. 1, which asked her to admit that Wells Fargo issued her a Visa credit card, and Request No. 5, which asked her to admit that she had never disputed the accuracy of any of the monthly statements for the credit card. Lewis is bound by these responses.

C. Discussion

The evidence submitted by Wells Fargo is sufficient to meet its initial burden of establishing an absence of triable issue of material fact as to the existence and amount of the debt owed by Lewis to Wells Fargo. The evidence is therefore sufficient as to both causes of action alleged in the complaint.

Lewis does not raise any triable issues of material fact on rebuttal. The only argument she makes in her opposition is that Wells Fargo fails to meet its initial burden. The court concludes otherwise. In addition, Lewis has failed show that any of Wells Fargo's undisputed material facts are actually disputed. Code of Civil Procedure section 437c, subdivision (b)(3) provides that papers opposing a motion "shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. *Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence*. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Emphasis added.)

While Lewis's separate statement purports to dispute *all* of Wells Fargo's undisputed material facts, it fails to cite any evidence in support of those disputes. Instead, her separate statement merely cites her objections to Wells Fargo's evidence. Objections to evidence are not themselves evidence. All of Wells Fargo's undisputed material facts therefore remain undisputed as a matter of law. Lewis has failed to submit any cognizable evidence in opposition to the motion.

Lewis's objections to evidence do not comply with rule 3.1354 of the California Rules of Court. This rule requires the filing of two documents: the objections to evidence and a proposed order on the objections. Both documents must be in one of the formats set forth in the rule. Objections that do not fully comply with rule 3.1354 will not be considered. (See *Vineyard Spring Estates v. Superior Court* (2004) 120 Cal.App.4th 633, 642 [trial courts only have duty to rule on evidentiary objections presented in proper format]; *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1 [trial court not required to rule on objections that do not comply with rule 3.1354 and not required to give objecting party a second chance at filing properly formatted papers].)

Even if Lewis's objections complied with the rule, the court would overrule them. The court finds that both the Brophy declaration and the Mulhorn declaration are based on a sufficient evidentiary foundation to authenticate the attached exhibits, and this evidence is sufficient to establish the existence of a contract (the credit card agreement), Lewis's acceptance of that contract (including through the use of the credit card), the fact that she received statements of the account, her breach through failure to pay amounts owed, and resulting damage to Wells Fargo.

The motion for summary judgment is GRANTED.

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Calendar Line 5
Case Name: *Jonathan Maldonado v. Aniceto Alva*
Case No.: 21CV381717

This is a motion for attorney's fees by defendant Aniceto Alva. It was originally scheduled to be heard on June 10, 2025, but plaintiff Jonathan Maldonado filed an objection to the motion, stating that his counsel was never properly served, and requesting a continuance "of at least 16 court days" to respond substantively. The court granted Maldonado's request and continued the hearing to July 29, 2025.

The court has not received any opposition to the motion.[7] Having reviewed the moving papers, the court concludes that they show good cause for an award of attorney's fees.

First, Alva is the prevailing party on the contract (a residential lease) between himself and Maldonado. The court (Judge Geffon) awarded Alva $12,179.00 in damages for unpaid rent and property damage by Maldonado. The court offset this award with $1,900.00 in favor of Maldonado for a breach of the implied warranty of habitability, but the net judgment was in favor of Alva for $10,679.00 "plus costs."'

Second, Alva also prevailed on Maldonado's retaliation claim, which under Civil Code section 1942.5, subdivision (i), allows the "prevailing party" to make a claim for attorney's fees.

Third, the lease between the parties included a clause providing for "reasonable attorney's fees and court costs" to the "prevailing party."

Fourth, as Alva points out, he did not bring an unlawful detainer action against Maldonado. Rather, this suit was initiated by Maldonado, and unlike an unlawful detainer action, it lasted over three and a half years, culminating in a two-day trial. Thus, although $56,667.67 in fees and $5,569.66 is a hefty amount, particularly given the amount of ultimate recovery, it is supported by an "attorney time sheet" that shows numerous reasonable tasks performed by Alva's counsel over the course of several years—from June 2021 to February 2025. The court agrees with Alva that this case was not "litigated under ordinary circumstances," under Code of Civil Procedure section 871.11, subdivision (b).

For the foregoing reasons, the court GRANTS the motion for attorney's fees and costs in the total amount of $62,237.33.

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[7] Instead, on the eve of the hearing, after the court had already prepared this tentative ruling, Maldonado submitted an eleventh-hour ex parte request for yet another continuance of the hearing—opposed by Alva—which the court denied for failure to show good cause.

Calendar Line 9
Case Name: *Amit Rattu et al. v. Melissa Baxter*
Case No.: 24CV441725

This case has a procedural history that can only be described as desultory.

On May 22, 2025, the court dismissed the case without prejudice, based on multiple failures to appear at hearings by the plaintiffs, Amit Rattu, Melanie Campbell, and Munir Omar Ali (collectively, "Plaintiffs"). (The May 22 hearing was on an order to show cause why the case should not be dismissed for a prior failure to appear.) On June 2, 2025, Plaintiffs filed an ex parte application to set aside the dismissal. The following day, the court signed an order setting the application for a noticed law-and-motion hearing on July 29, 2025. The court sent notice to all the parties. The court then received a belated opposition to the ex parte application from defendant Melissa Baxter on June 6, 2025. Finally, on July 10, 2025, Plaintiffs filed, without leave of court, a revised "notice of motion" and memorandum of points and authorities in support of the request to set aside the dismissal.

Because Plaintiffs filed their July 10, 2025 "notice of motion" only 13 court days before the hearing, it is untimely, and the court will disregard it. Plaintiffs' original ex parte application describes counsel's various difficulties in appearing remotely for the hearings in this case. The court finds that these papers sufficiently establish "mistake, inadvertence, surprise, or excusable neglect" on the part of Plaintiffs' counsel under Code of Civil Procedure section 473, subdivision (b). Although the court certainly understands Baxter's frustration with the way this case has been handled by opposing counsel—as recounted in her handwritten ex parte opposition—the court finds that the standard for mandatory relief under section 473(b) has been met.

The motion to set aside is granted, and the court sets a further case management conference on **October 14, 2025 at 10:00 a.m.** in Department 10. In its earlier order setting the July 29, 2025 hearing, the court noted: "Given plaintiff's counsel's failure to use remote appearance technology to appear on both April 1, 2025 and May 22, 2025, counsel should plan to appear in person for future hearings." (See June 3, 2025 Order, p. 5:22-24.) The court now amends this to state that plaintiffs' counsel may appear remotely, but it is his responsibility to ensure that he is able to use Microsoft Teams properly, with both a working camera and microphone. If he is unable to do so, he should plan to appear in person, which is always the optimal way to appear in court in any event. As a reminder, the reason the court allows remote appearances at hearings is to increase *access* to the court, not to increase the number of weak excuses for failures to appear.

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Calendar Line 10
Case Name: *Olga Sanchez Mojarro v. Oscar Ernesto Reyes Varela et al.*
Case No.: 24CV453124

Plaintiff Olga Sanchez Mojarro brings this motion for leave to file a first amended complaint ("FAC"), just two months after having filed the original complaint on December 3, 2024. Defendants Reyes Transportation, Inc. and Oscar Ernesto Reyes Varela (together, the "Reyes Defendants") do not—and really cannot—challenge the amendment on the ground that it was unduly delayed or that it will result in prejudice to them. Nevertheless, they do oppose the motion on the ground that the proposed amendment would be futile, because it adds a prayer for punitive damages, which the Reyes Defendants argue cannot be supported by the negligence causes of action in the case.

While the court shares the Reyes Defendants' doubts as to whether the prayer for punitive damages is adequately supported by the allegations of the proposed FAC, the court concludes that this is not the proper time and place to consider these motion-to-strike-type arguments. The proposed FAC includes other non-controversial amendments, including dismissal of two previously named defendants, that may serve to help focus the issues in the case. In addition, although the court does have strong doubts about the viability of any punitive damages claim based on the present allegations, the current amendment is not so obviously futile that the court can strike it without consideration of more complete briefing on the issue. Finally, it is so early in the life of the case that there is plenty of time to consider a properly noticed pleading challenge.

Defendants can certainly bring a motion to strike, but in the meantime, the court GRANTS the motion for leave. Plaintiff must file her FAC within 10 days of this order.

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